

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

15. 9:00 AM CASE NUMBER: L26-00601
CASE NAME: CAPITAL ONE, N.A. VS. WILLIAM L SABA

FILED BY:

TENTATIVE RULING:

Counsel filed a Motion to be Relieved.

There is no evidence of service on the Defendant.

No declaration was provided.

Disposition

Counsel for Defendant to appear on 7/7/26, 9am (zoom is permitted), to provide proof of service, as well as to provide reasons for withdrawal in camera.

16. 9:00 AM CASE NUMBER: L26-04380
CASE NAME: PETITION OF: JACK WAKILEH
PET. FOR RELASE OF PROPERTY. MECHANIC'S LIEN

FILED BY:

TENTATIVE RULING:

Petitioner filed a Petition for the Release of a Mechanic's Lien, along with a Declaration, on 5/7/26. Both documents were personally served on the Respondent.

The Petition is unopposed.

Petitioner seeks the release of the Mechanic's Lien on the property at 3784 Mosswood Dr., in Lafayette, as well as attorneys' fees in the amount of \$5,812.

Background

The Petition alleges that Respondent filed a Mechanic's Lien on the property for construction work, and that the Lien was recorded on 12/18/25. Petitioner further alleges that Respondent never filed an action on the lien after the recording. The deadline for filing an action was 3/18/26.

Petitioner sent several letters to Respondent in an attempt to resolve the matter, but also to notify Respondent of Petitioner's intent to file the Petition if Respondent failed to remove the lien. The latter notification occurred on 3/20/26.

There was no resolution, and the lien remained.

Petitioner provided an accounting of the hours spent on this matter and the fees incurred.

Analysis

California Civil Code Section 8460(a) provides that “The claimant shall commence an action to enforce a lien within 90 days after recordation of the claim of lien.” If this does not occur, the lien expires.

Section 8482 of the Civil Code requires that the Petitioner demand that the Respondent release the lien with notice of at least 10 days before filing the Petition.

Finally, Section 8488 of the Civil Code entitles the prevailing party to recover expenses for attorney fees.

In the instant matter, there is no evidence to controvert the claim that Respondent failed to pursue an action on the lien. Nor is there any evidence to suggest that Respondent withdrew the lien after the request from Petition.

What’s more, this court finds that both the number of attorney hours spent on the case as well as the hourly rate charged for this work are reasonable.

Disposition

Petition is granted.

Property is to be released from the Mechanic’s Lien forthwith.

Attorneys’ fees are awarded to Petitioner in the amount of \$5,812.

Petitioner to file Order and provide notice to Respondent.

Courtroom Clerk's Session

17. 1:30 PM CASE NUMBER: RS26-0122
CASE NAME: ANDREW SEHVANI VS. JOSHUA THOMPSON
JURY TRIAL
FILED BY:
TENTATIVE RULING: